

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

May 14, 2018

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Laybourn, and pursuant to support received by Dr. Rinne and Mr. Cook, Agenda Item #20 (f) was removed from the Consent Agenda. Mr. Roybal moved to approve remaining Consent Agenda items, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”.

[CA] Minutes from Regular Meeting of the Governing Body on April 23, 2018. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, Lot 14, Block 5, Homestead Addition, First Filing Replat, situated in the N½ NE¼ Section 4, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located south of Homestead Avenue, north of the Cheyenne Greenway). Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body. (#4223)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County MR Medium-Density Residential to NR-2 Neighborhood Residential - Medium-Density for Lot 14, Block 5, Replat of Homestead Addition, First Filing, Laramie County, Wyoming (located south of Homestead Avenue, north of the Cheyenne Greenway). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. (#4224)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. (#4225)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Unified Development Code, changing the zoning classification from County A-1, Agricultural and Rural Residential to MR, Medium-density Residential for a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and portions of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. (#4226)

ORDINANCE – 3rd READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 5.1.2 Zoning Districts Established, and Section 5.1.3 Official Zoning Map, of the Cheyenne Unified Development Code, changing the zoning classification from Conditional MUR, Mixed Use Residential Emphasis to NB, Neighborhood Business for a parcel of land consisting of all of Block 16, Hellmans Addition Subdivision, Cheyenne, Wyoming to be known as Peak Wellness Center (located at 510 West 29th Street, between O’Neil and Thomes Avenues). Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. (#4227)

ORDINANCE – 3rd READING – Amending, creating, or deleting various chapters and sections within Title 15, Buildings and Construction, of the Cheyenne City Code relating to adoption of the National Electrical Code, 2017 Edition. Mr. Roybal moved to approve on third and final reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. (#4228)

ORDINANCE – 2nd READING – Amending the City of Cheyenne’s Solid Waste Fee Schedule. Vicki Nemecek, Director of Public Works, reviewed reasons for the recommendation of a 5% rate increase, and advised of the 2014 rate study recommendation, noting an updated integrated solid waste management study will be conducted next year. Upon inquiry, Ms. Nemecek provided information on the following topics: Vertical landfill expansion and DEQ permit that has been obtained; savings realized from not hauling solid waste to Ault, CO; solid waste program, including compost and yard waste programs; elements of the solid waste, landfill, compost, Transfer Station and yard waste program operational costs and upgrades; proposed additional route for the yard waste program; anticipated revenue to be received from the rate increase; 2014 rate study findings and components included in the study; employee salaries, and discontinuance of equipment leasing as a mechanism to acquire trucks and equipment. Upon further inquiry, Ms. Nemecek and Ron Downey, City Treasurer, explained the \$748,000.00 transfer from the solid waste enterprise fund to the general fund (subsidy) is essentially a franchise

fee and will be allocated for elsewhere in the budget. Upon inquiry by Jeff Dierksen, Mayor Orr and Ms. Nemecek advised the solid waste fund is an enterprise fund; that the yard waste program is optional and, due to the number of residents on a waiting list who want the service, an additional route is being proposed. Kevin Kovak commented on blight concerns near property he owns, submitting a photo of the blighted property (on file with City Clerk's office), and requested information on the Mayor's Fight the Blight program. Mr. Shanor raised a point of order that comments were off subject from the agenda topic. Mayor Orr stated that blight issues can be considered during upcoming budget discussions, and that the information provided by Mr. Kovak will be reviewed. Mr. White reported there was no recommendation on the item from Finance Committee. Dr. Rinne moved to approve on second reading, seconded by Mr. Case. Discussion followed on the 2014 rate study and components that have changed since the study was conducted. Mr. Shanor, seconded by Mr. Case, moved to amend by adding an additional note, Note 16 (i.e. at the end of the fee schedule attached with the ordinance), as follows: All revenues raised as a result of this 5% fee increase shall be dedicated to the landfill and equipment expenditures identified in the HDR 2014 study before being used for payroll or other expenses. Upon inquiry on proposed amendment impact on the subsidy amount to be transferred to the general fund, Mr. Downey stated the franchise fees are 5% of the total City budget and the amendment's impact would depend on any changes to the proposed FY2019 budget. Upon inquiry, Mr. Shanor stated his proposed amendment would only apply for Fiscal Year 2019 and could be evaluated next year. In response to inquiry, Ms. Nemecek advised all public works department employees are currently at the minimum salary amount as recommended in the EIS salary study. Comments followed in support as well as non-support for the amendment; DEQ permit that has been obtained; department savings that have been realized and program improvements that have been made over the past few years; salaries of public works employees meeting a living standard, and allowing staff time to study potential impact of the proposed amendment, if approved, prior to third and final reading of the ordinance. Motion to amend failed (due to a tie vote). Voting "yes" – Mr. Case, Mr. Cook, Dr. Rinne, Mr. Roybal and Mr. Shanor. Voting "no" - Mr. Johnson, Mr. Laybourn, Mr. Luna, Mr. White and Mayor Orr. Main motion carried. Voting "yes" – Mr. Laybourn, Mr. Case, Dr. Rinne, Mayor Orr, Mr. Cook, Mr. Roybal and Mr. White. Voting "no" – Mr. Case, Mr. Johnson, Mr. Luna and Mr. Shanor.

ORDINANCE – 1st READING – Approving and establishing revised water and sewer rates, tap and system development fees, administrative fees, service charges and penalties, and septic and commercial waste dump rates, as recommended by the Board of Public Utilities – referred to Finance Committee. (Sponsor – Mr. Case)

ORDINANCE – 1st READING – Appropriating moneys for the City of Cheyenne, Wyoming, for the various purposes in conducting the municipal government of said City and fixing the amount of general and special taxes as part of the revenue required to meet the said appropriation, all for the Fiscal Year beginning July 1, 2018 and ending June 30, 2019 – referred to Committee of the Whole. (Sponsor – Dr. Rinne)

ORDINANCE – 1st READING – Pursuant to Section 2.2.1 Zoning Map Amendments, Section 2.2.2 Planned Development Plan, Section 5.1.2 Zoning Districts Established, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD – Planned Unit Development District, of the Unified

Development Code, changing the zoning classification from Laramie County Sweetgrass Planned Unit Development (PUD) to City of Cheyenne Sweetgrass PUD for 2,349.54 acres of land known as the Sweetgrass Land Area, City of Cheyenne, Laramie County, Wyoming (located south of College Drive and east of Avenue C) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Saddle Ridge, 13th Filing, a replat of a portion of Tract A, Saddle Ridge 12th Filing, a portion of Lot 1, Block 1, Cheyenne Hills Church Subdivision and a portion of the east half of Section 25, T.14N., R.66W., of the 6th P.M., Cheyenne, Laramie County, Wyoming (located north of and including Pershing Boulevard, east of Farthing Road; also located south of Sage Road, east of Gunsmoke Road) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Woods Landing Estates, 2nd Filing, a replat of Tract 1, Woods Landing Estates, situated in the SE¼ of Section 14, T.14N., R.66W., of the 6th P.M., Laramie County, Wyoming (located northwest of the intersection of Storey Boulevard and Whitney Road) – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Expressing the City of Cheyenne’s desire and commitment to facilitating commercial passenger air service at the Cheyenne Regional Airport both now and in the future – referred to Finance Committee. (Sponsor – Mr. Case)

[CA] Professional Services Agreement between the City of Cheyenne and Goat Green, LLC, for vegetation management along Dry Creek and Crow Creek (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (amount not to exceed \$100,000.00). (#6830)

Professional Services Agreement between the City of Cheyenne, Metropolitan Planning Organization, and AVI p.c., for the Parsley Boulevard Corridor Plan (MPO Planning funds). Nancy Olson, Metropolitan Planning Organization, explained purpose of the agreement is to acquire a 35% design corridor plan on Parsley from Ames Drive to West College Drive and a 10% design from West College Drive to West Wallick Rd. Ms. Olson reviewed corridor elements that will be addressed, noting WYDOT will be replacing the bridge on Parsley Blvd. over I-80 in the future, and advised the consultant will also be providing cost estimates for improvements and input from citizens will be obtained during the study process. Upon inquiry, Ms. Olson explained the project involves a corridor plan for expansion of Parsley Blvd. and that intersections along the corridor will be designed per identified needs, but the study will not go beyond the intersections and a study of Pinto Lane will not be conducted as part of the project but input from residents may be made on related corridor concerns. Jeff Dierksen inquired about resident notification methods that will be utilized and encouraged consideration that the intersection with Pinto Lane be included in the study. Ms. Olson indicated that social media, newspaper, radio and television media advertisements and announcements, email mailing lists, mailings, and a variable message sign board along the corridor are notification mechanisms that may be used to advise citizens of public meetings that will be held. Mr. White moved to approve in the amount of \$78,419.00, seconded by Mr. Johnson. Mr. White moved to amend by substitute dated May 7, 2018, seconded by Mr.

Johnson. Ms. Olson explained the amendment is for an address clerical correction contained in the scope of work area. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#6831)

[CA] Agreement between the City of Cheyenne and Amazing Amusements for an ATM machine at the Cheyenne Ice and Events Center (revenue to City). Motion (per Consent Agenda) carried. (#6832)

[CA] Agreement between the City of Cheyenne and Amazing Amusements for game machines at the Cheyenne Ice and Events Center (revenue to City). Motion (per Consent Agenda) carried. (#6833)

[CA] Purchase and Sale Agreement between the City of Cheyenne and Linda M. Moran, Gail L. Anderson and Vici Rae Foster, for real property to be used for the Christensen Road Project (1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$13,000.00). (#6834)

Purchase and Sale Agreement between the City of Cheyenne and Sung Thik Lim, for real property located at 308 West 17th Street, Cheyenne, Wyoming, to be used as the site for the construction of a municipal courthouse (1% Specific Purpose Sales and Use Tax). Joe Dougherty requested information on due diligence that has been conducted and any estimated costs that have been acquired since the governing body approved the property as the site of the new Municipal Court building, and commented in support of utilizing the building’s original facade if possible due to the building’s historic value. In response to his request, Vicki Nemecek, Director of Public Works, reviewed evaluations and site analysis that have been done to date, including the status of environmental and asbestos assessments. She advised the estimated cost for single level construction is \$6,650,000.00 for a 10,500 square foot building, and noted total remediation costs involving the environmental issues are yet to be received. Mr. White moved to approve the Purchase and Sale Agreement in an amount not to exceed \$275,000.00, seconded by Mr. Roybal. Discussion followed and included the following topics: Environmental studies; unknown costs affiliated with demolition and construction, and conditions contained in Section 6 of the agreement. Upon inquiry, Sylvia Hackl, City Attorney, confirmed the purchase price to be paid to the property owner, and that, upon the City taking ownership of the property, the City assumes remediation costs. Mr. Case, seconded by Mr. Shanor, moved to amend Section 6.2 of the Agreement by inserting the phrase “upon Council approval” so the section would read as follows: In the event any of the foregoing conditions precedent are not fulfilled as of Closing (or earlier date where specified otherwise), then the City shall have the option, upon Council approval, of either: (i) waiving the condition and closing “as is” without reduction in the Purchase Price or claim against Seller therefore provided that Seller assigns to the City all of Seller’s right, title and interest to the title insurance policy it obtained when it acquired the Property, or (ii) cancelling this Agreement by written notice to Seller. Upon inquiry, Ms. Hackl advised legal staff had not reviewed the proposed amendment wording but that she did not see a problem with it if the Seller, or Seller’s representative, had no objection. Chuck West, agent for the Seller, expressed his belief that the Seller would be acceptable to the proposed amendment. Motion to amend carried. Voting

“yes” – Mr. Case, Mr. Luna, Dr. Rinne, Mr. Roybal, Mr. Shanor, Mr. White and Mayor Orr. Voting “no” – Mr. Cook, Mr. Johnson and Mr. Laybourn. Main motion as amended carried. Voting “yes” – Mr. Case, Mr. Luna, Mr. Roybal, Mr. Shanor, Mr. White and Mayor Orr. Voting “no” – Mr. Cook, Mr. Johnson, Mr. Laybourn and Dr. Rinne. (#6835)

[CA] Contract for group health insurance for City of Cheyenne employees. Motion (per Consent Agenda) carried (approve proposal from Blue Cross/Blue Shield). (#6836)

[CA] Contract between the City of Cheyenne and Delta Dental for group dental benefits for City employees. Motion (per Consent Agenda) carried. (#6837)

[CA] Standard Service Agreement between the City of Cheyenne, Information Technology Division, and CenturyLink Sales Solutions, Inc., for Primary Rate Interface (PRI) telecommunications services for the City’s telephone system – referred to Finance Committee.

[CA] Lease Agreement between the City of Cheyenne and Little America Hotels & Resorts, Inc., for placement of a billboard advertising sign on the Belvoir Ranch (revenue to the City) – referred to Finance Committee.

[CA] User Agreement between the City of Cheyenne, Community Recreation and Events Department, and Cheyenne Stampede Junior “A” Hockey, LLC, for hockey practices and games to be held at the City-owned Ice and Events Center (revenue to City) – referred to Finance Committee.

[CA] Services Agreement between the City of Cheyenne and AM Signal, Littleton, Colorado, for traffic signal control software and affiliated hardware (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Asbestos and Technical Services, Inc., for services for the demolition and disposal of the residential structure located at 815 Capitol Avenue, Cheyenne, Wyoming – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Noel Griffith Jr. & Associates Architects for analytical and design engineering for the construction of a new Municipal Court at 308 West 17th Street, Cheyenne, Wyoming (1% Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Amendment No. 4 to Contract No. 5930 between the City of Cheyenne and KONE, Inc., Englewood, Colorado, to standardize pricing for elevator maintenance services and to add services for an elevator at the Botanic Gardens and Transfer Station. Motion (per Consent Agenda) carried. (#5930)

[CA] Amendment No. 1 to Contract No. 5939 between the City of Cheyenne and Lamar Companies, Baton Rouge, Louisiana, to extend the term of lease for placement of billboards on the Belvoir Ranch (revenue to City). Motion (per Consent Agenda) carried. (#5939)

[CA] Contract Modification No. 1 to Contract No. 6743, Professional Services Agreement between the City of Cheyenne and River Oaks Communications Corporation, Centennial, Colorado, for drafting and negotiation of Charter Communications Cable Franchise renewal and CenturyLink Cable Television franchise agreements. Motion (per Consent Agenda) carried. (#6743)

Consideration of Bid #E-18-18 for furnishing one new 2017-2018 front end wheel loader for the Street and Alley Division (2015-2018 1% Sales Tax). Vicki Nemecek, Director of Public Works, provided information on the content of bid specifications and subsequent addendums that had been issued; pre-bid meeting and bid opening date and those in attendance; response by bidders relative to each bidder's proposed equipment and the bid process that was followed. Ms. Nemecek reviewed specific bid specifications, including the requirement of a manual locking differential, compared with bid responses received, and noted acknowledgment was received by all bidders that they had received the bid addendums. She discussed key issues that were reviewed during review of the bids received and stated the bidder meeting all bid specifications was Titan Machinery, Inc., the third lowest bidder. Keith Cashman, Wyoming Machinery, commented on and explained reasons for the equipment his company had bid involving a limited slip differential, not a manual locking differential as contained in one of the addendums, and noted attendance at the pre-bid meeting was not mandatory. Mr. White reported the motion to accept the bid from Wyoming Machinery of Cheyenne in an amount not to exceed \$227,156.48 failed at Finance Committee, therefore, there was no recommendation on the item from the Committee. Mr. Luna moved to accept the bid submitted by Wyoming Machinery of Cheyenne in the amount of \$227,156.48, seconded by Mr. Case. Discussion followed and included the following topics: Difference between a manual locking differential and a limited slip differential and staff's recommendation of a manual locking differential; operational needs involving acquisition of the equipment; compilation of bid specification information; Wyoming Machinery vs. Titan Machinery equipment differences, and pre-bid meetings and bid process generally. During discussion and upon inquiry, Ms. Nemecek provided additional information regarding the bids received. Motion failed. Voting "yes" – Mr. Case, Mr. Cook, Mr. Laybourn and Mr. Luna. Voting "no" – Mr. Johnson, Dr. Rinne, Mr. Roybal, Mr. Shanor, Mr. White and Mayor Orr. Mr. Roybal moved to accept the bid submitted by Titan Machinery, Inc., in the amount of \$257,621.67, seconded by Mr. White. Discussion followed on the option of rejecting all bids and the timeframe involved to re-bid the equipment; bid process consistency; making pre-bid meetings mandatory for attendance by interested bidders, and the average number of bids that are issued by Public Works for heavy machinery per year. Motion failed (due to a tie vote). Voting "yes" – Mr. Case, Dr. Rinne, Mr. Roybal, Mr. White and Mayor Orr. Voting "no" – Mr. Cook, Mr. Johnson, Mr. Laybourn, Mr. Luna and Mr. Shanor. Mr. Shanor moved to reject all bids and to re-bid the equipment, seconded by Mr. Luna. Pursuant to comment that perhaps the motion wasn't necessary, Carol Intlekofer, City Clerk, suggested that officially rejecting all bids would be the procedurally correct way to proceed as there were other bids received not just the bids involved in the motions that failed. Following comment on the need to fine-tune the bid process, motion carried. Voting "yes" – Mr. Case, Mr. Cook, Mr. Johnson, Mr. Laybourn, Mr. Luna, Dr. Rinne and Mr. Shanor. Voting "no" – Mr. Roybal, Mr. White and Mayor Orr.

[CA] Consideration of Bid #E-20-18 for furnishing front end load containers for the Sanitation Division (Solid Waste Management funds). Motion (per Consent Agenda) carried (accepted bid submitted by Wastequip Manufacturing Co., Inc., Statesville, North Carolina, in an amount not to exceed \$89,274.35).

[CA] Consideration of Bid #S-10-18 for a contract between the City of Cheyenne, Public Works Department, and Modern Electric Co., Casper, Wyoming, for the 2018 Traffic Signal Upgrades Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-11-18 for a contract between the City of Cheyenne, Engineering Department, and Simon Contractors, for the 2018 Chip Seal #1 Project (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #S-14-18 for a contract between the City of Cheyenne, Engineering Department, and Reiman Corp, for the Civic Center Commons Park Project (1% Specific Purpose Sales Tax; FEMA; SLIB; Wyoming Business Council grants) – referred to Finance Committee.

[CA] Consideration to purchase Motorola complete vehicle 2-way radio systems and chargers from Wireless Advanced Communications, Evans, Colorado, for the Cheyenne Police Department (Homeland Security funds, 2015-2018 1% Sales Tax and 1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$87,714.60)

Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the June 14, 2018 Wyoming Association of Municipalities Membership Business Meeting to be held in Pinedale, Wyoming – referred to Finance Committee.

Appointment of Astrid to the Cheyenne Downtown Development Authority Board. Mr. Roybal moved to approve, seconded by Mr. Luna. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no” and Mayor Orr who did not vote (Mayoral appointee).

Announcement that due to the Memorial Day holiday on Monday, May 28, 2018, the regularly scheduled meeting of the governing body will instead be held on Tuesday, May 29, 2018 beginning at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming.

Following a brief recess, Mayor Orr reconvened the meeting at 8:15 p.m.

Under other business:

Carol Intlekofer, City Clerk, advised due to timeliness involving a Federal transit grant application the following item was being introduced under other business: Resolution authorizing submission of an application to the Wyoming Department of Transportation for a Wyoming Rural Public Transportation Program grant to provide the local match for operating funds for the City of Cheyenne for its Transit Program, as authorized by 49 U.S.C § 5311. Mayor Orr referred the item to Finance Committee.

Major Dorr expressed concerns regarding loss of available nearby parking for persons attending events at the Civic Center due to the Civic Center Commons Project, which will eliminate the parking lot west of the Municipal Building.

Mr. Johnson expressed appreciation to volunteers who recently helped clean up trash in the Saddle Ridge neighborhood, and announced a fundraiser supporting the Depot Plaza splash pad feature will be held on Wednesday, May 16, 2018 at the Luxury Diner with food sale proceeds being donated toward the splash pad.

Stating there was no other business, Mayor Orr adjourned the meeting but immediately reconvened the session, noting she had inadvertently overlooked the need for her to present the following to City Council members: Mayor Orr referenced a written Mayoral veto message (on file with City Clerk's office) she had previously provided to City Council members on May 7, 2018 detailing her objections to Resolution No. 5927, as amended, which was adopted by a majority vote of the governing body at the April 23, 2018 City Council meeting. [City Clerk note: Resolution No. 5927 is titled as follows: Resolution – requiring certain conditions associated with the rental of the City's athletic fields by Steve Avila or SAA Enterprises so as to serve and protect the interests of the Cheyenne Community.] Mayor Orr read her veto message in its entirety into the record and stated, for the record, that she has had many communications or meetings with representatives of the Cheyenne Mustangs, Post 6 Baseball and Mr. Avila throughout the past year. Mr. Shanor moved to override the Mayor's veto of Resolution No. 5927, seconded by Mr. Cook. Mr. Shanor requested that if any member of the public in attendance at the meeting wished to speak on the motion that they be allowed to do so. Mayor Orr denied the request stating the topic of the motion is procedural to be addressed by City Council and does not involve the merits of the resolution itself. Mr. Shanor raised a point of order, appealing the decision of the chair, and moved to override the decision of the chair, seconded by Mr. Luna. Following brief procedural comments, motion to override the decision of the chair and allow public comment on the motion to override the Mayor's veto carried. Voting "yes" – Mr. Case, Mr. Cook, Mr. Johnson, Mr. Laybourn, Mr. Luna, Mr. Shanor and Mr. White. Voting "no" – Dr. Rinne, Mr. Roybal and Mayor Orr. Rick Thompson, speaking on behalf of Cheyenne Mustangs, commented in support of the resolution as amended and adopted at the April 23, 2018 Council meeting. Discussion followed and included the following topics: Substance of the Mayor's veto message; conditions placed on Mr. Avila pursuant to the amended resolution that was adopted; enforceability of resolutions; whether Mr. Avila will agree to the conditions; authority to impose conditions affiliated with athletic field rentals; legal entity status of SAA Enterprises; City's prior monetary sponsorship agreement with Cheyenne Mustangs, not Mr. Avila; Cheyenne Mustangs agreement with Mr. Avila, and supporting local youth baseball and tournament events. During discussion and upon inquiry, Sylvia Hackl, City Attorney, advised she had been in communication with Mr. Avila following adoption of the resolution, and had emailed him a copy of the resolution, with a cover memo and a form she had prepared titled "Acknowledgment of Receipt of Resolution and Acceptance of Conditions Set Forth Therein", which listed the conditions contained in the resolution for his initials and signature. Ms. Hackl stated in her cover memo she requested a response by May 3rd from Mr. Avila as to whether he would comply with the resolution conditions. Ms. Hackl noted she and the Mayor's Chief of Staff participated in a telephone call received from Mr. Avila on

May 3rd in which he stated he would not sign the form or accept the conditions. Ms. Hackl shared additional information on the content of the telephone conversation, and expressed her interpretation that, pursuant to Wyo. Stat. §15-1-103 (a)(xxii), the City Council does have the authority to place terms and conditions on use of the City's athletic fields through administrative Departmental rental guidelines and rental agreements. Motion to override the veto carried. Voting "yes" – Mr. Case, Mr. Cook, Mr. Laybourn, Mr. Luna, Dr. Rinne and Mr. Shanor. Voting "no" – Mr. Johnson, Mr. Roybal and Mr. White. [City Clerk note: State statute and City Code prohibits a Mayor from voting on their own veto message. Passage of a motion to override the Mayor's veto requires a minimum 2/3rds affirmative vote of the qualified members of City Council (i.e. 9 members).]

There being no further business to come before the governing body, the meeting was officially adjourned at 9:04 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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